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Privacy Policy

Updated: January 2017

Funbrain Holdings LLC (“Funbrain”) operates this website ("Website") and is committed to protecting the privacy and security of its online visitors. We are also extremely sensitive to family and educator concerns about children's safety and information related to them. We want you to know about and understand the measures we have taken to keep the websites and online services provided by Funbrain a safe and secure environment for everyone. This privacy statement tells you about the types of information that we collect from you, how we collect that information from you and how we use that information.

We encourage our visitors to read through and understand our privacy statement. We may update it from time to time to address new issues or reflect changes on our Website. Please refer to this privacy statement regularly. Funbrain reserves the right to revise this privacy statement at any time and such revisions shall be effective immediately upon notice thereof. Notice may be given by any means

For material changes to this privacy statement that may affect the collection or use of personal information from children, we will notify and obtain the prior verifiable consent of a parent or legal guardian. See our practices regarding children below.

If you have any questions or concerns about this privacy statement, or your dealings with Funbrain, please:

1. Contact us
2. Write to us at: Funbrain Holdings LLC, 540 Atlantic Avenue, 5th Floor, Brooklyn, NY 11217

INFORMATION WE COLLECT FROM YOU

When you use this Website, we may collect personal information and anonymized information from you. Personal information means information that would identify you, directly or indirectly, such as your name, mailing address, email address or telephone number. Anonymized information means information that does not or could not reasonably be used to identify a specific individual. Please note we do not currently collect personal information from children users. For additional information regarding our practices for children, please see Children's Privacy section below.

When a player creates a user account we may request that he or she creates a unique username and password and provide us with certain information, such as, gender and age.

In connection with a purchase transaction, we will ask you for the following information: first name, last name, email address, billing address, credit card number, card expiration date and card security code.

This Website may contain blogs, bulletin boards or other public forums where free form entry is permitted. We highly recommend that you do not post your personal information when using these features. If you provide your personal information through any of these features, then such personal information will be posted publicly for others to see. We do not currently offer features that allow children to post or share personal information publicly.

We also collect anonymized information from your computer or device such as browser type, operating system, referring pages, pages visited, time spent on a

When you use this website, we collect personal information and anonymized information through a variety of methods.

We collect personal information from you when you interact with this Website by filling out a form such as registering for a user account, submitting a customer service request, conducting a purchase transaction, or participating in a public discussion forum.

We collect anonymized information from you by using technologies like cookies, web beacons and server logs.

This Website contains cookies from Funbrain and third parties. While browsing through this Website, you may get cookies from our advertisers or sponsors. Funbrain does not control these cookies.

We may also use single pixels images, web beacons and other similar technology (collectively "Beacons") to (a) track your usage of the Website, (b) track response rates to certain activities and promotions within the Website and in marketing campaigns, and (c) identify certain information on how and when you accessed the Website such as type of browser, operating system, domain names, IP addresses and the like.

HOW WE USE YOUR INFORMATION

Funbrain and its affiliates may use your personal information to tailor the content programming, services, and applications that we provide to meet your needs and interests. When you conduct a purchase transaction through this Website, you are providing purchase transaction information to Funbrain's third party service providers (such as transaction processors and financial institutions) who will use the information solely for the purpose of the purchase transaction.

When visitors request pages from Funbrain sites, our servers log users' IP addresses. We typically do not link IP addresses to any personal information. This means that a visitor's session will be logged, but the visitor remains anonymous to us.

Funbrain collects IP addresses for system administration, to report aggregate information to our advertisers, sponsors, and partners, and to audit the use of our site. We will use IP addresses to identify a user in the following situations: (a) in

consistent with applicable law.

The anonymized information we track with cookies is not used to identify, or lead us back to, any particular visitor. Visitors to this Website may have the option of disabling cookies via their browser preferences (most browsers are initially set up to accept cookies). Cookies make our Website easier for you to use because they save your preferences while you are visiting our sites (although we do not save passwords in cookies). Cookies also help us know which areas are your favorites, which areas need improvement, and what technologies and Internet services our visitors are using. Knowing this information helps us continually improve the online experience for our visitors and members.

Funbrain may also use third party vendors who supply applications, web hosting and other technologies for this Website that may have access to your personal information and anonymized information but they will never use such information for any other purpose except to provide services in connection with this site.

Funbrain will not share any personal information about you with any third party, except as otherwise stated in this Privacy Statement and in the following circumstances: (a) in response to subpoenas, court orders or legal process, to the extent permitted and as restricted by law; (b) when disclosure is required to maintain the security and integrity of this site, or to protect any user's security or the security of other persons, consistent with applicable laws; (c) when disclosure is directed or consented to by the registered member who has inputted the personal information; (d) in the event that Funbrain Holdings LLC or any of its subdivisions or units goes through a business transition, such as a merger, divestiture, acquisition, liquidation or sale of all or a portion of its assets, your personal information will, in most instances, be part of the assets transferred; or (e) in limited circumstances, Funbrain may disclose your email address in order to comply with laws and regulations, including the Controlling the Assault of Non-Solicited Pornography and Marketing Act (CAN-SPAM of 2003).

DO NOT TRACK

This Website does not respond to your browser's (or app's) "do-not-track" signals or comparable signals or mechanisms. Please check our Privacy Statement frequently as this may change in the future.

HELPFUL EXPLANATIONS

The use of "cookies" is common in the Internet industry; you will find them used on this Website, as you will at other major websites. "Cookies" are small text files written to your computer. For more information about cookies please go to: allaboutcookies.org.

CHILDREN'S PRIVACY

Funbrain encourages parents and guardians to supervise their child's use of the Internet. We urge parents to instruct their children to never give out their real names, addresses, phone numbers, or other personal information without a parent's or guardian's permission when using the Internet. We recognize a special obligation to protect personal information obtained from children. For this reason, Funbrain generally does not request, collect, or store any personal information knowingly from children under 13.

As a parent, you've probably done a lot of thinking about protecting your family's privacy on the Internet. We have been thinking and working hard to provide you with the best information and the highest quality interaction on the Internet in an environment that is safe. In compliance with COPPA (the Children's Online Privacy Protection Act), we have adopted the following policies to keep kids safe (there are exceptions to these policies as noted below under the heading "Exceptions to Verifiable Parental Consent and Information Collected from Children"):

- We will NOT knowingly collect, use, or distribute personal information from children under the age of 13 without prior verifiable consent from a parent or guardian.
- Personal information we collect from children under the age of 13 will be used solely by SAM or its agents for internal purposes only and will NOT be sold or otherwise distributed to third parties.
- We will NOT knowingly allow children under the age of 13 access to free form chat, message boards, email accounts, or other services within SAM that would allow them to publicly post or otherwise distribute personal information without prior verifiable consent from a parent or guardian.
- We will NOT knowingly ask a child under the age of 13 to divulge more information than is needed to participate in any activity, game, or service.

purged promptly after the issue has been resolved.

- We will NOT knowingly post any personal information that is inadvertently included in a child's submission to a general audience contribution area if we know that the child is under the age of 13. Upon notice to us, these submissions will be deleted and handled anonymously thereafter.
- We will NOT knowingly provide any direct link to websites that are unsuitable for children or teens.
- We will advise children under the age of 13 that they MUST obtain permission from their parent or guardian before sharing ANY personal information.
- Upon request, Funbrain will provide a parent or guardian with a description of the information that may have been provided about their child during a registration process for a program or service of this site. Funbrain only asks for a child's or teen's personal information if it is necessary to participate in an activity, game or service. If we have collected and stored personal information from a child, we will give parents the ability to review their child's personal information, request that we discontinue further collection or use of their child's personal information, and/or request that we delete their child's personal information.

If you have any questions about this Privacy Statement, please contact Funbrain at help@funbrain.com

NOTIFICATION AND VERIFIABLE PARENTAL CONSENT

Before any personal information is collected from a child, we will do our best to notify the parent or guardian that their child is participating. Notification will include the exact nature and intended use of the information we are collecting, as well as the opportunity for the parent or guardian to prevent the use of the information and the child's participation in the activity. For every child (anyone under 13 years of age), we will also require the parent or guardian to provide verifiable parental consent such as: by email plus a fax, phone or letter follow up by the parent or guardian; mail, fax or scan of a consent form; or toll-free phone call to Funbrain; or other acceptable method.

In order for us to provide notice to a parent or guardian and seek verifiable parental consent, we may request the online contact information of a parent or guardian.

COLLECTED FROM CHILDREN

In the following instances we will NOT get verifiable parental consent for the collection of a child's personal information:

- Collecting a child's contact information solely to directly respond to the child's request on a one-time basis (for example, to provide assistance with a particular customer service question). We will not use that information to re-contact the child for any other purpose (we will purge from our system the child's personal information after responding);
- Collecting a child's contact information and the contact information of his/her parent or guardian solely to directly respond more than once to a specific request from the child (for example, to satisfy the request for a newsletter subscription). In this instance, the parent or guardian will be notified that the child made such a request and be informed of the information provided by the child. The parent or guardian will have an opportunity at any time to revoke the child's request (i.e., unsubscribe). We will not use the child's personal information to re-contact the child for any other purpose.
- Using persistent identifiers on our Website to support the internal operations of our Website which include: maintaining and analyzing the functioning of the Website; performing network communications; authenticating users; personalizing content on the Website; serving contextual advertising or capping the frequency of advertising; protecting the security or integrity of the user, Website or service; and to ensure legal and regulatory compliance. A "persistent identifier" is a series of numbers that we assign to a user but cannot be reasonably used to identify a specific user.
- A child may provide the email address of their parent or guardian for the purpose of retrieving or resetting a child's lost password for their user account. A parent or guardian's email address collected in this instance will only be used for this purpose.

ABOUT OUR ADVERTISERS

This Website allows advertising by third parties. Funbrain does not control the linking practices of advertisers or sponsors and does not monitor or claim responsibility for any content or privacy practices of such websites. Once you have clicked on an

third-party advertisers or sponsors. These third parties may obtain personal information that visitors voluntarily submit to participate in the activity. Funbrain does not control the third parties' use of information.

Funbrain may use advertising servers developed by third parties to display ads on this Website. Some of these ads may contain cookies that are set by third parties (advertisers, sponsors) and may use anonymized information (not including your name, address, email address, telephone number) about your visits to this and other sites in order to provide advertisements about goods and services of interest to you. We do not have access to these cookies or any information that they transmit. The Funbrain privacy statement does not cover any use of information that a third-party ad server may have collected from you. Please note that Funbrain does not engage in the practice of showing or tracking users for interest-based advertisements on its child-directed sites.

For more information on ad serving, please go to allaboutcookies.org/ad-serving/. If you would like to know your choices about not having information used by these third parties, please go to networkadvertising.org/understanding-online-advertising/what-are-my-options

A NOTICE ABOUT EXTERNAL LINKS

Occasionally, you will find links from Funbrain to independently owned, controlled, and/or managed Websites whose content we believe will be of possible interest and value to our visitors. Additionally, you'll see links from advertisers, sponsors, and other partners who may use a Funbrain owned logo as part of a co-branding agreement.

In many cases, these links represent cooperative projects or mutual links established with the organizations connected with these sites. We do not control the content of these links. These other sites may send you their own cookies, collect data, or solicit personal information. While we identify sponsor and advertiser areas of our Websites, we do not control these cookies or the content of these third parties.

Funbrain has partnered with other companies to provide certain services. In some cases, you may see a Funbrain logo on another company's site. Funbrain does not

URL in the location bar on your browser), the use of any information collected from you is governed by the privacy policy of the operator of the site you are visiting. That policy may differ from ours. If you cannot find the privacy policy of any of these sites via a link from that site's Home page, you should contact the site directly for more information.

We specifically recommend that children check with their parents, guardians, or teachers before connecting to any third party sites.

SECURITY, PURCHASES AND CREDIT CARD USE

Funbrain has security measures in place to protect the loss, misuse, and alteration of the information under our control. Essentially, we encrypt all transmission of sensitive data and secure all of our repositories of data. When you use your credit card to make a purchase transaction with Funbrain, your transaction is secure. Our servers use encryption technology to safeguard your personal information and privacy. However, you should understand that "perfect security" cannot be guaranteed.

CROSS-BORDER TRANSFER OF DATA

Any personal information you provide to Funbrain in connection with this Website will be stored on Funbrain's servers or those of its affiliates and/or authorized vendors and will be accessible by authorized employees, agents and contractors of Funbrain and its affiliates and authorized vendors. Due to the global nature of the Website, personal information may be transmitted, stored or processed in a country other than the one in which you reside ("Resident Jurisdiction"), including primarily in the United States, the European Union and India. Reasonable contractual or other measures Funbrain may take to protect your personal information while outside the Resident Jurisdiction are subject to applicable foreign legal requirements, for example, lawful requirements by governmental authorities or court order to disclose personally identifiable information to government authorities in the countries in which such data may be stored or processed. SUBJECT TO APPLICABLE LAW, IF YOU RESIDE IN THE EUROPEAN UNION, CANADA OR OTHER JURISDICTION WITH SIMILAR DATA TRANSFER REGULATIONS, BY ACCEPTING THE TERMS OF THIS AGREEMENT, YOU EXPLICITLY CONSENT THAT THE PERSONALLY IDENTIFIABLE INFORMATION YOU PROVIDE MAY BE TRANSFERRED AND STORED IN COUNTRIES OUTSIDE THE EU, CANADA OR YOUR RESIDENT JURISDICTION, INCLUDING THE UNITED STATES, IN CONNECTION WITH THE

FUNBRAIN

WITH THE TERMS OF THIS PRIVACY STATEMENT.

BROWSE BY GRADE

Pre-K & Kindergarten
1st Grade
2nd Grade
3rd Grade
4th Grade
5th Grade
6th Grade
7th Grade
8th Grade

BROWSE BY TYPE

All Games
All Videos
All Books

ABOUT FUNBRAIN

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